

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2024CUOR030757: MARIA SKLAVENTIS, et al. vs SHELLPOINT MORTGAGE
SERVICING, et al.**

09/14/2026 in Department 43

**Motion for Reconsideration of the Court's July 29, 2026 Order Granting Motion for
Summary Judgment**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Plaintiff's Motion for Reconsideration of the Court's July 29, 2026, Order Granting Defendants' Motion for Summary Judgment

Tentative Ruling: Plaintiff Maria Sklavenitis's Motion for Reconsideration is DENIED. There are no new facts or law presented on which the Court could base reconsideration. The Court's ruling on summary judgment was not intended as a preview of the Court's thinking or an advisory opinion on which Plaintiff could base additional argument and renew her opposition.

Defendants are ordered to serve notice of the Court's ruling.

DISCUSSION

Code of Civil Procedure § 1008(a) provides:

**2024CUOR030757: MARIA SKLAVENTIS, et al. vs SHELLPOINT MORTGAGE
SERVICING, et al.**

When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application **shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.**

A party seeking reconsideration must provide a satisfactory explanation for the failure to produce the evidence at an earlier time. *New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212. There must be “new or different facts, circumstances or law.” (Code Civ. Proc., §1008(a).)

Moving party does not provide the required affidavit in support of the motion. This alone provides sufficient grounds for denial. Plaintiff’s supplemental declaration (August 10, 2026) does not address the procedural aspects of subdivision (a) of section 1008 of the Code of Civil Procedure. As such, there is no explanation offered as to why Plaintiff’s Opposition to the Summary Judgment and supporting papers did not contain the discussion regarding TILA and Regulation Z that is now presented in the Motion for Reconsideration. This failure renders Plaintiff’s complaint about the court’s case citation (*Colaco v. Cavotec SA* (2018), 25 Cal.App.5th 1172) (which was to general law concerning contractual obligations) irrelevant. Whether the citation is on point does not excuse the Plaintiff’s failure to properly raise this issue previously.

There is no explanation as to why the chain of title argument was not presented in the opposition to the motion. (The Court notes that Plaintiff’s supplemental declaration does not attach the assignment documents.)

Plaintiff misconstrues the Court’s ruling regarding laches. (July 29, 2026, Ruling on Submitted Matter.) The laches argument was offered by Defendant as a separate and distinct basis for which the court Could find in Defendant’s favor on its summary judgment motion. Because the Court otherwise found that Defendant had met their burden (and Plaintiff had not raised a triable issue of fact), Defendant’s failure to prove that particular argument was irrelevant to the outcome of the motion.

Additionally, although the court did not use the term “equitable tolling”, the court addressed the issue Plaintiff has raised in the Motion for Reconsideration: “The Court is not persuaded that any damages flowed from Plaintiff’s reliance on the “house out of foreclosure” statement, even assuming Plaintiff’s interpretation is correct.” (Page 6). Moreover, Plaintiff asserts that this argument was presented in the Summary Judgment opposition, so it is not “new” as required by section 1008.

Note: On September 4, 2026, Plaintiff filed an objection to a proposed judgment that states: “Plaintiff does not dispute that Defendants are entitled to entry of judgment consistent with the Court’s July 29, 2026, Minute Order granting summary judgment.” The Court is puzzled about the

**2024CUOR030757: MARIA SKLAVENITIS, et al. vs SHELLPOINT MORTGAGE
SERVICING, et al.**

need for the present motion if Plaintiff does not dispute that Defendants are entitled to entry of summary judgment.